

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE 1 OF 87 PAGES		
2. AMENDMENT/MODIFICATION NUMBER 0003		3. EFFECTIVE DATE 01/13/2026		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY NPS, WASO - WCP Contracting P.O.Box 25287 MS WCP Denver CO 80225				7. ADMINISTERED BY (If other than Item 6) CODE			
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				9A. AMENDMENT OF SOLICITATION NUMBER (X) 140P2126Q0023			
				9B. DATED (SEE ITEM 11) (X) 01/13/2026			
				10A. MODIFICATION OF CONTRACT/ORDER NUMBER			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

See continuation page

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
		Casey Winters	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140P2126Q0023/0003	PAGE 2 OF 87

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Amendment 3: 1) Update the scope as is shown below. 2) Answer questions received: There is no incumbent for this work. No further changes. Period of Performance: 03/02/2026 to 09/30/2026 Basic Academy bridge Training Program (BABTP) - FY26 HOAL Facility & Grounds Maintenance Services The Horace Albright Training Center (HOAL), a unit of the National Park Service, manages all property within its land assignment in Grand Canyon National Park, Arizona. All work under this contract will occur within HOAL's boundaries at 1 Albright Avenue, Grand Canyon, AZ 86023. This contract covers facility and grounds maintenance services for four locations: three lodging facilities and one training facility containing offices, conference rooms, training rooms, stairwells, lobbies, landings, kitchenettes, restrooms, and related areas. POC: Casey Winters, casey_winters@nps.gov				

1 PART B – CONTINUATION OF SF 18 for Combined Synopsis Solicitation

1.1

1.2 Supplemental Information:

1. This procurement is for full and open competition under NAICS code 561730 “Landscaping Services” with a size standard of \$9.5 Million
2. The price schedule applicable to this Order is available via the individual clins of SF 18.
3. The Government intends to award one (1) purchase order as a result of this solicitation.
4. Submitted offers shall be valid for 90 calendar days from the date specified for receipt of offers.
5. Reference No: **140P2126Q0023**
6. Project Title:
FY26 HOAL Facility & Grounds Maintenance Services
7. Ordering Office: U.S. Department of the Interior, National Park Service, Washington Contracting Office (WCO)
8. Point of Contact: Casey Winters, Contracting Officer, casey_winters@nps.gov
9. Contract Type: The government contemplates award of a time and materials order consistent with FAR 52.212-4 Alt 1

Statement of Work (Attachment 1)

STATEMENT OF WORK

FACILITY MAINTENANCE SERVICES

**Horace-Albright Training Center
& Lodging Units
1 Albright Avenue
Grand Canyon, AZ 86023**



NATIONAL PARK SERVICE

WASO - VISITOR & RESOURCE PROTECTION

PURPOSE

The Horace Albright Training Center (HOAL), a unit of the National Park Service, manages all property within its land assignment in Grand Canyon National Park, Arizona. All work under this contract will occur within HOAL's boundaries at 1 Albright Avenue, Grand Canyon, AZ 86023. This contract covers facility and grounds maintenance services for four locations: three lodging facilities and one training facility containing offices, conference rooms, training rooms, stairwells, lobbies, landings, kitchenettes, restrooms, and related areas.

These locations have systems typical for public use buildings such as HVAC, water/wastewater, electrical, grounds, etc. that require regular maintenance, and emergency repairs. This contract will cover such services, including prompt emergency response, and cost-effective pricing for repairs beyond regular maintenance. The objective is to provide facilities maintained in a safe, reliable, and fully operational

condition through comprehensive facility and grounds maintenance services without downtime or large-scale repairs. The contractor will provide recurring, preventive, and on-call support to preserve building systems, maintain exterior areas to National Park Service standards, protect infrastructure from deterioration, and ensure the facilities remain ready for year-round training, housing, and administrative use. The contractor shall provide all labor, supervision, materials, tools, equipment, and transportation necessary to maintain facilities and exterior grounds in a safe, functional, and presentable condition. Custodial services are excluded here and addressed under a separate scope of work.

All contractor personnel entering these facilities must complete the HSPD-12 clearance process and obtain an ID badge before access is granted.

This contract will be awarded as a firm-fixed-price requirement for a 9-month base period of performance. Contractors shall propose a total price for the 9-month period.

The Government does not anticipate a need for “Start-Up Services” since existing services will continue without interruption during the solicitation period. However, offerors shall include firm-fixed-price proposals for an optional CLIN titled “Start-Up Services.” The Government may choose to award this optional CLIN, at the quantity and price proposed, by written notice from the Contracting Officer within 45 days after contract award.

The Government will evaluate proposals for award based on total price.

Scope of Services:

- Preventative maintenance services to include flushing systems; greasing motors and bearings; clear condensate drains; clean coils; check couplings, gaskets, and fixtures; snow and debris removal, down or hazard tree removal, cleaning of drainage systems, etc.
- As-needed services to include snow and debris removal; down or hazard tree removal; replacing lights and appliances; door/window/floor repairs; facility system repair, replacement, and installation of parts and fluids; etc.
- Perform additional preventative maintenance according to manufacturer specifications if not specifically called out.
- The contractor shall perform all services in accordance with applicable federal, state, and local regulations, National Park Service (NPS) policies, and industry standards.
- Work shall be executed to avoid disruption to training programs, lodging occupants, and park operations.
- Contractor personnel shall comply with all safety, environmental, and security requirements established by the NPS.
- All work areas shall be left in a safe, clean, and workmanlike condition at the end of each workday.
- The contractor shall provide a primary point of contact capable of responding to government inquiries within one business day.

I. LOCATIONS

Reference Appendix A identified as “Location Data” for each of the locations to be serviced. The data provides addresses, square footage, hours of operations, and site-specific interiors.

II. DUTY HOURS

This contract requires daily support services as outlined. The determination of the total daily productive personnel hour requirements for the performance of all services specified herein is the sole responsibility of the contractor.

All services shall be performed between the hours of 7:00am and 6:00pm. Daily services are to be performed Monday through Friday (5 days a week).

The Contractor will follow the Federal Government Work Schedule policy by the Office of Personnel Management (OPM) for determination of closures or delays to the contract work schedule (i.e., Government closed on a federal holiday, the personnel will not report).

All work outside of the designated performance hours are required to be requested seven (7) business days in advance, in written form, by the Contractor to the Contracting Officer’s Representative (COR) or Site Inspector for approval. Such requests may be for extended hours, weekends, and/or holidays. The contract requires 24-hour emergency services as specified.

III. GENERAL PROVISION

- A. The contractor shall provide all management, supervision, labor, materials, supplies, tools, equipment, and all other items needed to coordinate and ensure quality workmanship.
- B. The contractor shall take into consideration the utilization of existing ancillary equipment, building support systems, equipment, and operating environment in order to achieve the objective.
- C. The contractor shall take care so as to not damage existing infrastructure. The contractor shall be held liable for cost of all repairs to existing infrastructure that results from the performance of this contract.
- D. Contractor shall include all necessary mechanical, electrical, fire and safety protection devices, system control devices, alarm/supervisory devices, and all ancillary components required for a complete, safe, reliable, and functional system, even though each item/device is not specifically mentioned or described herein.
- E. The determination of the total daily productive man hour requirements for the performance of all services specified herein is the sole responsibility of the bidder. This contract requires facilities and grounds maintenance services as outlined. It is of the utmost importance that the contractor utilizes skilled and productive manpower in order to satisfactorily furnish the required level of service specified in this contract.
- F. Quality workmanship is required at the full performance level of specified services, beginning at the contract start date.

- G. Although a comprehensive list of structures, systems, utilities, and ancillary infrastructure is included in this Scope of Work, the Contractor shall take into consideration the potential existence of unknown systems or infrastructure.
- H. The contractor shall be responsible for professional quality, technical accuracy, project coordination, equipment installation, training, disposal of existing non-functional equipment, and all other ancillary items required to deliver and handover to meet the needs of the National Park Service.
- I. The contractor shall provide all necessary supervision, safety protection devices, and personal protective equipment (PPE), required for complete and safe operations on site.
- J. All scheduled services shall be performed between the hours of 7:00am and 6:00pm during the normal 5-day workweek, Monday through Friday, Federal holidays excluded, unless specifically approved by the COR or Site Inspector. Work to be performed on weekends must be scheduled in advance with written approval from the COR or Site Inspector. Scheduling of all services must be approved in writing by the COR or Site Inspector. The contract requires 24-hour emergency services as specified.
- K. Required shutdown of services to the building areas shall be scheduled with the COR or Site Inspector at least 48 hours in advance (unless an emergency situation exists) so that building operations are not disrupted.
- L. Contractor shall investigate existing conditions, review any applicable specifications, make necessary calculations, recommendations, and system modifications to achieve the objective of the NPS. Contractor proposal is to be “all encompassing” to meet unforeseen needs.
- M. Contractor shall be responsible for professional quality, technical accuracy, and project coordination.
- N. Contractor is responsible for obtaining any and all required permits and meeting all OSHA and industry regulations that apply. Contractor personnel shall possess and maintain all required certifications required to complete the tasks; contractor is responsible for ensuring that appropriate certifications are in place.
- O. Contractor shall research and verify, and at all times comply with all applicable laws, life safety codes, ordinances, rules, regulations, and orders of authority having jurisdiction.
- P. All work areas shall be completely cleaned up at the end of each workday. Contractor shall dispose of all large waste off site. NPS does not provide facilities for large waste disposal.
- Q. Any welding or hotwork requires a separate NPS permit. Coordination of hotwork permits is to occur through the COR or Site Inspector/Inspector at least 24 hours in advance.

IV. FACILITY MAINTENANCE SERVICES

Facility maintenance includes recurring, preventive, and on-call maintenance for NPS-owned buildings and structures at HOAL and its lodging units.

- A. Preventive Maintenance

1. The contractor shall perform the recommended preventive maintenance on building systems and equipment, including:
 - a) Domestic water heaters and boilers.
 - b) Exhaust fans and ventilation systems.
 - c) Interior and exterior lighting (bulb replacements, ballast/driver checks).
 - d) Electrical system inspections for damage, wear, or safety issues.
 - e) Plumbing inspections and repairs for leaks, blockages, and proper fixture operation.
 - f) Backflow testing
 - g) Fire alarm, extinguisher, and AED testing
 - h) Generator servicing
 - i) Door hardware, locks, and closures.
 - j) Appliances and built-in equipment.
 - k) Drainage system maintenance.
2. Preventive maintenance schedules shall be submitted to NPS for approval.
3. Repairs are to be made to correct any deficiencies or damage found.

B. Routine & Corrective Maintenance

1. The contractor shall perform the recommended routine repairs to maintain facilities in good working order, including:
 - a) Minor carpentry repairs (trim, windows, doors, wall fixtures, etc.).
 - b) Minor plumbing repairs (faucets, toilets, drains, seals, etc.).
 - c) Minor electrical repairs (switches, outlets, fixtures, etc.).
 - d) Patching and repairing interior wall surfaces.
 - e) Building drainage system clearing (gutters and downspouts)
 - f) Exterior building envelope repairs (screens, minor siding/trim repairs, caulking, etc.).
 - g) Replacement or repair of damaged flooring materials.

C. Emergency & On-Call Response

1. The contractor shall provide 24/7 emergency response for failures posing a risk to personnel, property, or operations, including:
 - a) Burst pipes or significant leaks.
 - b) Electrical hazards.
 - c) Compromised entry systems or doors.

- d) Broken exterior windows/doors.
- 2. Response times:
 - a) Emergency: within 2 hours.
 - b) Routine: within 3 business days.
 - c) Preventative: as scheduled within code or manufactures guidelines

D. Ground Maintenance Services

- 1. Grounds maintenance applies to all exterior areas associated with the training center campus and lodging units.
- 2. Landscaping & Vegetation Management
 - a) Prune shrubs and trees for safety, clearance, and healthy growth.
 - b) Remove invasive vegetation and maintain defensible space around structures as required by NPS fire management protocols.
 - c) Maintain native vegetation landscaping.
 - d) Remove downed limbs, debris, and storm-related plant material.
- 3. Grounds Infrastructure Maintenance
 - a) Maintain walkways, parking areas, steps, railings, and exterior lighting.
 - b) Remove weeds and vegetation from hardscapes.
 - c) Inspect and maintain site furnishings (benches, picnic tables, bollards, signage).
 - d) Maintain and clear drainage channels and ensure proper water flow around buildings.

E. Snow & Ice Removal

- 1. Plow and clear snow from access roads, parking areas, and walkways.
- 2. Apply ice-melt treatments to maintain safe pedestrian and vehicle access.

F. Lodging Unit Exterior Support

- 1. Maintain building exteriors, porches, walkways, and exterior lighting.
- 2. Ensure HVAC condensers and utility pads are kept clear of obstructions.
- 3. Maintain exterior stairwells, railings, decks, and landings.
- 4. Inspect propane or fuel systems where applicable.

G. Waste & Debris Removal (Non-Custodial)

- 1. Remove maintenance-generated debris from worksites.
- 2. Transport and disposal of waste in accordance with NPS regulations.

3. Support recycling or waste diversion requirements for materials such as metal, wood, and vegetation.

V. AS NEEDED - Repair, Replacement, Installation

- A. Contractor shall provide all management, supervision, labor, materials, supplies, repair parts, tools, equipment, and all other items required to plan and ensure economical services to include: repairs, adjustment, replacement, installation, and testing of all facility systems including flooring, windows, doorways, walkways, plumbing, heating, cooling, air handling equipment, compressors, exhaust fans, ancillary piping, controls, and drainage systems.
- B. The contractor shall provide 24-hour emergency services. In an instance where the COR or Site Inspector or his designated representative determines an emergency exists, the Contractor shall have service personnel on site within two (2) hours.
- C. It is mandatory that the contractor provides phone numbers that are answered by live persons 24 hours each day, 7 days each week, who have the authority to dispatch service help as requested.
- D. All services shall be billed monthly and paid at the hourly rate or according to the line-item specified on the accepted proposal.
- E. The Contractor is expected to meet all time frames specified for work as agreed upon between Contractor and COR or Site Inspector. The COR or Site Inspector may not be able to coordinate access to work locations if the Contractor does not meet the agreed upon timeframe. In such cases where the Contractor does not keep appointments as scheduled, the Contractor will be asked to reschedule for a different time or day.
- F. The Contractor shall have adequate and reasonable parts on hand to perform normal maintenance and expedient repairs.
- G. The Contractor will not be paid for time to and from the park.
- H. The park shall not be responsible for any work requested by any person other than the COR and Site Inspector or their designated representative.
- I. All repairs and assessments shall begin as soon as the contractor arrives at the park after receiving oral or written directions from the COR or Site Inspector, providing the contractor meets the agreed upon schedule. Except for the procurement of needed parts, the Contractor must pursue all work on a continuous basis until completed. For emergency work, this means working until the task is completed, no matter what the day or hour. For inspections and scheduled preventative maintenance work, this means working regular daytime hours on consecutive workdays. (M-F)
- J. The Contractor must submit to the COR and Site Inspector an invoice for parts and labor within 72 hours of completing work for any particular task. A copy of the associated service work order sheet (Signed by the CO) must be attached. The invoice must list labor by type, amount, and unit price as listed in the Contractor's original proposal. Parts must be listed separately by quantity, unit, unit price, and total.

- K. The Contractor shall not make alterations or permanent changes to the systems, controls, or fixtures without prior approval from the COR or Site Inspector. The Contractor shall reflect all approved changes with a well-defined sketch or as-built technical drawing as well as operation manuals.
- L. All replacement parts, pipes, filters, belts, bearings, motors, valves, gaskets, and other materials used in the performance of this contract shall be new and of the type, quality, grade, and be composed of characteristics appropriate for the respective manufacturer.

VI. FREQUENCY OF SERVICE

- A. Frequency of services to be performed are identified in Section IV and should follow manufacture's maintenance scheduled or industry standards and to include the following miscellaneous requirements. Only changes as approved in writing by the CO shall be deemed authorized. Any other form of changes performed under this contract that are unauthorized shall be the burden of the Contractor and shall be at no cost to the Government.

VII. REQUIREMENTS

A. Warranty

- 1. The contractor shall warrant all materials, parts, and labor provided under the terms of the scope of work for one year from the date of completion and acceptance by the government.
- 2. The contractor shall furnish the NPS with all manufacturer warranty information for materials and parts provided under the terms of the scope of work. The manufacturer shall be responsible for repairs or replacement of any part of equipment that is found to be defective in workmanship or material. The manufacturer shall be notified in writing as soon as defect becomes apparent.

B. Deliverables

- 1. Preventative Maintenance
 - a) Detailed list of PM activities proposed
 - b) Detailed list of equipment to receive PM service.

C. All Services

- 1. Complete pricing schedule.
- 2. Proposed schedule for completion of work.
- 3. SDS for all products utilized in completion of work.
- 4. The Contractor shall develop and use a service work order sheet when performing inspections for regular preventive maintenance work, emergency call outs, and as-needed

repairs. This service work order sheet must be pre-approved by the COR or Site Inspector before being used and shall, at a minimum, contain the following:

- a) Date
- b) Actual time of day billing started
- c) Actual time of day billing ended
- d) Location
- e) Task performed
- f) Billable time per contractor employee associated with each task
- g) Equipment identification
- h) Quantity and type parts and supplies used/installed.
- i) A signature block for the Contractor employee performing the work
- j) A signature block for the COR or Site Inspector.
- k) Copies of completed service work order sheets, with the COR or Site Inspector's signature affixed, shall be submitted with each invoice and shall correctly reflect all work billed on said invoice.

D. Quality Assurance

1. Contractor shall provide a quality assurance and control plan that addresses, but is not limited to, implementation of supervision, systematic approach to the operations to meet NPS needs, government property management, method(s) to address operational changes to take corrective actions to address issues such as call-outs, staff termination replacement, method for improving work processes, and performance measurements to ensure quality of work and in turn minimizes and prevents the occurrence of deficiencies.
2. Qualifications of Contractor's Employees
 - a) All employees working on the air conditioning, heat pump, or refrigeration systems shall have universal certification in accordance with EPA section 608 and 609, level 1.
 - b) All employees performing work under this contract shall have verifiable experience performing the services specified under this contract.

E. Supplies, Materials, and Equipment

1. The contractor shall furnish all supplies, materials and equipment necessary for the performance of the work of this contract. As a minimum, these supplies and materials shall be of a quality to conform to all applicable Federal specifications. Before beginning the work of the contract, the Contractor shall submit to the Contracting Officers Representative (COR) or Site Inspector a list giving the name of the manufacture and the brand name of each of the materials that he/she proposes to use in the performance of the work. The Contractor shall not use any materials which the COR or Site Inspector

determines would be unsuitable for the purpose or harmful to any part of the buildings, the contents, equipment or persons. The Contractor shall submit a Material Safety Data Sheet (SDS) for all materials to the COR and Site Inspector for approval prior to use in the park.

2. Electrical power will be furnished by the Government at existing power outlets for the Contractor's use to operate such equipment as is necessary in the conduct of his/her work. Hot and cold water will also be made available to the contractor as necessary in the performance of his/her work. No special heating or cooling of water will be provided.
3. The Contractor shall provide cellular phones to their supervisor or foreman for business calls to the Contractor or to the COR/Site Inspector. The Contractor shall provide contact information to the COR and Site Inspector.

F. Safety and Health

1. The Contractor shall conduct operations so as to prevent accidents, injuries and damages; shall observe all fire, safety and traffic regulations. The Contractor shall provide all personal protective equipment including rubber gloves, face masks, safety shoes/boots, hard hats and eye and ear protection as required under the documented Safety Plan and by product manufacturer's recommendations. The Contractor shall also be responsible for all safety communication and training requirements for the safe use of all equipment and materials. All employees shall wear the applicable MUTCD rated reflective vest while performing work within 10- feet of a traveled roadway, parking lot, or driveway. All protective equipment must meet ANSI standards and be used as required by OSHA and as directed by the COR or Site Inspector.
2. The contractor shall comply with all pertinent provisions of the Occupational Safety and Health Administration (OSHA) Standards, 29 CFR 1910, and 1926; the National Fire Protection Association National Electrical Code/Life Safety Code; and any pertinent federal and local codes and requirements. All OSHA requirements may be obtained without cost to the general public at www.osha.gov. The Contracting Officer or COR may include additional measures if determined necessary or required by other federal, state or local law, or park policy.
3. The Contractor shall have a Hazard Communication Program in place as required by 29 CFR 1910.1200 where Safety Data Sheets (SDS) / Technical Data Sheets shall be obtained by the contractor for all hazardous materials to be used in the performance of this contract. These SDS's and an inventory of hazardous materials must be provided to the COR or Site Inspector prior to bringing the material on site. The first time a new substance, which requires an SDS due to its hazardous status, is proposed to be brought into the Park, a copy of the SDS with detailed reasoning for use of such material shall be submitted through the COR or Site Inspector to the Park Risk Manager. Only after written approval from the park Safety Manager is received by the Contractor, can this new substance be brought into the Park. SDS shall be maintained at any jobsite where a substance requiring a SDS is being used. It shall also be available in any vehicle carrying such substance while in the Park. These SDS will be available to all employees of the

Contractor, employees of the Park, concessionaires and the public when any member of these groups might come in contact with, or be exposed to, any substance requiring a SDS due to its hazardous status. The contractor must have an active HAZARD COMMUNICATION PROGRAM in place for all employees as required by 29 CFR 1910.1200.

4. In the event of a reported physical injury, repeated service interruption, or an accident involving plumbing system damage or equipment fire has occurred, the Contractor shall immediately secure the plumbing system or equipment and notify the COR or Site Inspector. The Contractor shall perform the necessary repair on the plumbing system or equipment per code and within manufactures specifications. The Contractor shall verify in writing to the COR or Site Inspector the safety condition of any piece of equipment covered by this specification prior to its restoration to service, once the equipment has been removed from service.
5. In the event the contractor becomes involved in any incident or accident involving a Park Visitor, or Park Property, the contractor must notify both the Site Inspector and Site Supervisor, so an investigation and record can be made. All damage to government property caused by the Contractor shall be reported to the COR or Site Inspector.
6. Contractors are subject to safety inspections performed by Park personnel or others. These inspections may be routine, unannounced, or based on reports of unsafe or unhealthy working conditions. Safety violations will be reported to the CO. If a violation is deemed to be immediately dangerous to health, life, or serious in nature, the COR or Site Inspector or any park officer, has the authority to stop work until the matter may be resolved to the COR or Site Inspector's satisfaction.
7. National Park Service personnel do not issue confined space entry permits to contractors or provide equipment to evaluate confined spaces. Contractors working in confined spaces must comply with appropriate OSHA Standards with emphasis on 29 CFR 1910.146. Copies of all permits issued by the contractor to their personnel shall be forwarded to the COR and Site Inspector within 24 hours of permit expiration.

G. Environmental Requirements

1. The Contractor shall comply with all existing Federal and State of Arizona regulations pertaining to hazardous material use, storage and disposal.
2. Materials and chemicals shall be stored, used and disposed of in such a manner as to not endanger or threaten the environment, animal, or human health and safety.
3. All generated waste shall be disposed of legally at the completion of each day's work.
4. The Contractor shall provide the safety data sheets (SDS), with any hazardous materials listed on the attached Hazardous Material List, to the COR and Site Inspector for approval to be utilized in performing work of this contract. No supply, material, or equipment shall be used prior to approval by the COR or Site Inspector. Upon approval of supplies, materials, and equipment by the COR or Site Inspector, the COR or Site Inspector and Contractor will formulize and concur with an operating procedure, that shall be adhered

to, for the Contractor's personnel performing work of the contract that requires use of the products or residue that is considered hazardous.

5. No asbestos or lead-based paints are known to be present in the project work area. Any area found to be containing these materials shall be brought to the immediate attention of NPS personnel. Activities shall cease and appropriate testing shall be conducted.

H. Conduct and appearance of Contractor's employees

1. All Contractor's employees must be able to communicate in the English language with the Government's representative.
2. The Contractor shall require his employees to comply with the instructions pertaining to conduct and building regulations issued by duly appointed COR or Site Inspector.
3. The Contractor shall be required to remove personnel in its employment on this contract for the following reasons:
 - a) Disrespect to either park employees or visitors during performance of the contract.
 - b) Personal conditions. Using illegal drugs, drinking alcoholic beverages, intoxicated behavior or unsafe work habits.
 - c) Misconduct of any kind.
4. Under circumstances set out above, the contractor shall be responsible for immediate removal of the employee(s). When it is necessary to remove personnel, the contractor shall immediately furnish a replacement(s) to carry out the services to be performed under this contract.
5. The Contractor's employees shall wear a uniform of a distinctive color bearing the Contractor's name or logo. Employee clothing shall be kept reasonably clean and neat in appearance.
6. Vehicles, if company owned, shall have the contractor's name and logo on each side of the vehicle. Employees using personal vehicles shall display a park provided vehicle pass within the vehicle. Employees shall park in designated parking spaces within the Horace-Albright land designation. Park vehicle pass does not apply to parking along roadways or private parking areas.

I. Circumstance to be Reported

1. The Contractor shall promptly report to the Contracting Officer (CO) any circumstances involving needed repairs to the facility or unusual soiling of an area that may affect the performance of work or create unhealthy or hazardous conditions.
2. The Contractor shall report to the Contracting Officer's Representative (COR), Site Inspector, Site Supervisor, law enforcement ranger, park ranger, and/or fire department any instances of fire, accidents, vandalism, attempted break-ins, signs of attempted break-ins, suspicious persons, or any other suspicious activities.
3. The Contractor shall also note and report in writing to the COR and Site Inspector any conditions that cannot be corrected within the scope of work described herein.

- a) If directed by the COR or Site Inspector, the Contractor shall submit a proposal for performing the prescribed work, including a breakdown of unit prices for labor, materials, and equipment required.
- b) The COR and Site Inspector will evaluate the proposal and, if deemed valid, seek approval from the CO. The Government shall not be obligated to pay for any services performed beyond the scope of the contract without prior approval from the CO.

J. Miscellaneous Requirements

1. Lights shall only be used in areas where work is actively being performed.
2. Water faucets, valves, lights, fans, and windows shall be turned off or secured when not in use.
3. Fires, hazardous conditions, maintenance issues, and items in need of repair shall be reported immediately to the COR, Site Inspector, or Site Supervisor.
4. Lost-and-found articles shall be turned in to the site supervisor.
5. Contractor shall respond promptly to all service calls related to facility maintenance requirements and take corrective action.
6. Contractor employees shall participate in any required Occupant Emergency Plan training.
7. Contractor shall respond to COR or Site Inspector notifications within two (2) hours and take prompt corrective action on all service calls.
8. The contractor shall maintain a daily work log recording the quantities of work performed and the locations. Contractor shall provide reports to the COR and Site Inspector documenting observed maintenance or safety issues, including leaks, broken fixtures, malfunctioning lights, and other deficiencies.
9. Water, lighting, equipment, and building access shall be managed in a manner that prevents waste, damage, or unsafe conditions.

VIII. SAFETY & HEALTH

The Contractor shall conduct their operations so as to prevent accidents, injuries and damages; shall observe all fire, safety, traffic, and all local, state, and federal OSHA rules and regulations.

Prior to the start of the contract, the Contractor shall submit to the CO/COR for approval a written Safety Plan. At minimum, the Safety Plan should include the following:

- A. The name of the supervisor responsible or contact and pertinent phone number(s);
- B. A list of chemicals and/or products, including manufacturer names or the brand names, to be used during the performance of work under this contract, the intended use of each of these materials or products, any potential hazards that may be associated with the use each product, and Safety Data Sheets (SDS) for each of these products;

- C. A description of work to be performed and any potential hazards that may be associated with the performance of that work;
- D. Personal Protective Equipment required;
- E. Training schedule;
- F. Safety meeting schedule; and
- G. An emergency response plan including accident reporting procedures, first aid procedures, emergency phone numbers, and reporting instructions for ambulance, hospital, physician, fire, and/or police response.

The Contractor shall provide all personal safety equipment, including rubber gloves, face masks, eye and ear protection, as required under the documented Safety Plan and by product manufacturer's recommendations at no expense to the Contractor's employees.

The Contractor shall also be responsible for all safety communication and training requirements for the safe use of all equipment and materials.

IX. FIRE PREVENTION & SECURITY

The Contractor is responsible for ensuring security of Government property, buildings, equipment, materials, records, and data against unauthorized access, loss, or damage during the performance this contract.

Fire Prevention: The Contractor shall at all times keep storage areas neat, clean, and free from odors and fumes. All chemical and combustible items shall be stored in proper containers. All trash shall be placed in the dumpsters and not stored in the closets.

There are no public areas designated as smoking areas. Smoking is prohibited inside all Federal buildings.

X. CONSERVATION OF UTILITIES

Upon completion of work in each building upon, the Contractor shall ensure that all lights are off, all machines and appliances are shut off or disconnected, and all windows and entrance doors are closed and locked.

XI. SECURITY

- A. NPS shall provide access, as approved and appropriate for performance of this contract, to the Contractor. This shall include Government keys to access areas within the approved facilities and parking spots/locations as identified by the COR or Site Inspector. Any acquired tickets or towing in unidentified approved locations will be at the expense of the contractor.
- B. The Contractor shall announce arrival and departure to any Government employees present after normal duty hours and shall ensure all exterior doors remain closed and locked except when

actively being used and kept within the Contractor's line of sight. Only the Contractor's personnel are permitted in the building or on the job site during service performance. All Contractor-owned equipment and supplies shall be secured in designated closets before leaving the premises.

- C. The Contractor shall establish and implement effective key-control procedures to ensure all Government-issued keys remain secure, are used only by authorized Contractor personnel, and are never duplicated. Keys shall not be used to allow access to anyone other than Contractor employees performing assigned duties. Locked areas shall not be opened for unauthorized individuals.
- D. Any lost key must be reported to the COR, Site Inspector, or Site Supervisor no later than the next day of duty. If a standard key is lost, the Government will replace the affected lock and deduct the full cost from the Contractor's monthly payment. If a master key is lost or duplicated, the Government will replace all locks and keys for that system, and the total cost will be deducted from the monthly payment. The Contractor is responsible for all such expenses. day.
- E. The Contractor shall not reconnect or handle any computer wiring that becomes disconnected during service performance. Any accidental disconnection shall be documented in a written notice left on the COR, Site inspector, or Site Supervisor's desk. The Contractor shall not disturb papers, equipment, or personal items on desks or bulletin boards; shall not open drawers or cabinets; and shall not use Government computers, telephones, fax machines, or similar equipment except in an emergency.

XII. UNFORESEEN BUILDING CLOSURES

When an unforeseen closure, either road or building, occurs on a regularly scheduled day of work, the Government shall have the following options:

- A. To require the Contractor to perform work necessary to sustain operations on the following normal duty day.
- B. To forego the work and reduce payment due to the Contractor accordingly for work not performed.

XIII. WORKMANSHIP

Workmanship shall be of an acceptable quality such as it would be found in an administrative and training facility and meet an acceptable quality level as determined by industry standards and codes. The contractor is solely responsible for determining and providing the daily productive labor hours and number of personnel required to meet all specified services. Because this contract requires support services, it is essential that the contractor supply skilled, efficient staff to deliver the required service levels. Adequate staffing must be in place no later than 30 days after the contract start date. All required services must be performed at a quality level beginning on day one, with full performance achieved no later than 30 days after the start date.

XIV. QUALITY CONTROL

The contractor shall develop and maintain a quality control program to ensure custodial services are performed in accordance with commonly accepted commercial practices and services identified in this SOW. The contractor shall develop and implement procedures to identify, prevent, and ensure non-performance and continual repeat of defective service does not occur. The contractor shall provide the Government with a copy of their Quality Control Plan as stipulated in Section XXI below.

- A. The Contractor shall be expected to ensure services are provided or performed to the appropriate standards through the Contractor's Quality Control Plan. Except as otherwise stated, services required by this contract are generally of such nature that nonconforming or incomplete performance disclosed by Government inspection is subject to correction by re-performance or late performance and will result in a deduction being made to the contract price for the month if no correction is made.
- B. The contractor shall provide timely, complete, and accurate monthly performance reports that demonstrate compliance with thresholds and explain any deviations. Reports shall include root-cause analysis for deficiencies, corrective actions taken, and prevention measures. The COR or Site Inspector may request additional documentation or data validation to verify reported metrics.
- C. These reports will be used by the COR and Site Inspector to confirm completed work and to plan and conduct Government inspections.

XV. QUALITY ASSURANCE

The government shall inspect and evaluate the contractor's performance to ensure services are received in accordance with requirements set forth in this contract. The COR and Site Inspector will utilize the contractor's work schedule, or modified version thereof, to record validation results. Results of the validation then become the official record of the contractor's performance.

- A. Periodic Validations - The Government will conduct scheduled or unscheduled inspections to determine whether the workmanship meets required standards. Any corrections required due to inadequate results shall be performed at no additional cost to the Government.
 - 1. Any unsatisfactory inspection (deficiency) result shall be recorded and provided to the Contractor.
 - 2. The Contractor shall take any corrective actions to correct the recognized deficiency within 2 hours of receiving the notification or provided a timeline for correcting the deficiency with an identified appropriate method within eight (8) hours from the time of notification with approval as such from the COR or Site Inspector.
 - 3. Any corrections required due to inadequate results shall be performed at no additional cost to the Government.

4. All corrections must be completed prior to re-inspection and Government acceptance of the work.
- B. Customer Complaints – Any Government personnel or members of the visiting public may report unacceptable service, incomplete work, or missed requirements to the CO, COR, Site Inspector, or Site Manager.
1. The COR or Site Inspector will receive and investigate/validate complaints.
 2. When a complaint is determined to be valid, the COR or Site Inspector will notify the Contractor both orally and in writing. The Contractor shall take any corrective actions to correct the recognized deficiency within 2 hours of receiving the notification or provided timeline for correcting the deficiency with an identified appropriate method within eight (8) hours from the time of notification with approval as such from the COR or Site Inspector.
 3. Any disputes between the COR or Site Inspector and Contractor on the validity of the complaint will be elevated to the CO for final determination
 4. The CO shall make final determination of the validity of customer complaint(s) in cases of disagreement with the COR or Site Inspector and the Contractor. Validated customer complaints shall be re-performed within 2 hours of notification.
- C. Contract Deduction for Non-Performance or Inadequate Performance - The Contracting Officer may deduct a specified amount on the contract for inadequate or non-performance based on an estimated cost or actual cost of service or other methods of procuring the service.

XVI. PERFORMANCE REQUIREMENTS STANDARDS

- A. The Contractor shall be expected to ensure services are provided or performed to the appropriate standards through the Contractor's Quality Control Plan. Except as otherwise stated, services required by this contract are generally of such nature that nonconforming or incomplete performance disclosed by Government inspection is subject to correction by re-performance or late performance and will result in a deduction being made to the contract price for the month if no correction is made.

XVII. CONTRACTOR CLEARANCE REQUIREMENTS

- A. All contractor personnel who have been identified and assigned to the contract are required to have a mandatory, government-wide Homeland Security Presidential Directive 12 (HSPD-12) clearance and receive a Personal Identity Verification (PIV) card, also known as their government credentials, to access entry to any of the facilities within this contract entering these facilities prior

to commencement of work. A secondary clearance review may be requested and conducted by DOI, as deemed appropriated in accordance policy, due to the access required for performing work within federal law enforcement sensitive facilities, after a HSPD-12 clearance is complete and a PIV card has been issued.

- B. Upon award, the Contracting Officer (CO), or the COR and Site Inspector as directed within the authority provided by the CO, shall assist the Contractor in establishing required appointments, with the appropriate NPS Personnel Security Officer (PSO) to initiate the clearance process. This may come in the form of an email with required forms that are to be completed prior to appointment. The Contractor personnel shall be required to be physically present for the date/time slots scheduled with two identity source documents, at least one of which must be a valid federal/state government issued picture ID with current address and shall be fingerprinted. Once clearance is received and the PIV is issued, the PSO will notify the CO, COR, and Contractor personnel (who is responsible for notifying their employer of clearance completion).
- C. Assistance with establishing the required clearance shall be provided by the NPS who will incur the costs of the background clearances, thus it is required that the Contractor identify all staff with submittals, as later directed within this scope, for those personnel only that will be performing work of this contract.
- D. Any personnel that fail to pass the background clearance will not be permitted to perform work on this contract nor enter the NPS facilities and shall be removed from the list of Contractor personnel provided to NPS.
- E. The Contractor shall notify the CO/COR of any new personnel being assigned to the contract. Within seven (7) of notification, the Contractor shall submit for approval all information as required by the CO/COR for approval. Once approved, the CO/COR shall assist with establishing the clearance process for the contractor personnel. As previously noted, the contracted personnel shall not perform any work or gain entry access to any facilities of this contract until clearance and PIV have been received.
- F. The Contractor is required to immediately notify the CO/COR of any personnel that is removed or terminated from the contract and return all of the Contractor personnel's credentials to the CO/COR. The COR and Site Inspector shall provide notification, in writing, to the Contractor of receipt of the credentials, whom received by, date, time, and when returned to the PSO.

XVIII. GOVERNMENT RESPONSIBILITIES:

- A. Electrical power will be furnished by the Government at existing power outlets for the Contractors use to operate such equipment as is necessary in the conduct of his/her work.
- B. Hot and cold water will also be made available to the contractor as necessary in the performance of their work. No special heating or cooling of water will be provided.
- C. Space will be made available for the storage of supplies and equipment which will be used in the performance of work under this contract. The Contractor shall maintain such space in a neat, orderly condition and shall, at the expiration of the contract, return it to the Government in reasonably the same condition as at the time of entering into the contract. The Government will

not be responsible in any way for damage or loss to the Contractor's stored supplies, materials, equipment or replacement parts.

XIX. CONTRACTOR/ CONTRACTOR PERSONNEL RESPONSIBILITIES:

- A. Contractor shall provide the COR and Site Inspector with a complete list of all assigned personnel who shall perform work of this contract within seven (7) days of issuance of the award. The list shall include each individual's name, a valid email address, daily tour of duty (include day(s) of week and hours), and schedules of work assignments and locations (facilities) per day. An updated list will be submitted five (5) days prior to the start of the contract and monthly thereafter.
- B. Contractor shall provide a contact list of Contractor personnel assigned to the contract for communication purposes to the COR and Site Inspector. This list should at the minimal provide the names of Key Personnel, titles, email address(s), office number, and cellular number.
- C. Contractor shall provide cellular phones to their supervisor or foreman for contact and information associated shall be provide to the CO, COR, and Site Inspector.
- D. Contractor must have male and female personnel assigned to enter respective restrooms, as applicable, to the frequency schedule.
- E. Contractor shall provide labor records for all personnel assigned to perform work of this contract to the CO/COR within three (3) business days when requested.
- F. Contractor vehicles, if company owned, shall have the contractor's name and logo on each side of the vehicle and shall display a park provided vehicle pass within the vehicle where it is shall be clearly visible.
- G. Contractor personnel using personal vehicles shall be provided with a park-provided vehicle pass that shall be displayed within the vehicle where it is shall be clearly visible.
- H. Contractor/ Contractor Personnel shall park in legal parking spaces identified by the park/or within the park. Any vehicles that acquire tickets or towing in these areas shall be at the expense of the contractor.
- I. Contractor will be required to sign an NPS property form for all keys assigned to Contractor for storage spaces, training offices, conference rooms, etc.
- J. Contractor shall be responsible for reimbursement to Government for any lost keys, costs associated shall include replacement of keys and cores due to compromising of facilities securities.
- K. Contractor shall provide all personal protection equipment (PPE), supplies, materials and other necessary equipment (in full working condition) to its personnel to allow successful performance of work of this contract.
- L. Contractor shall post a safety data sheet (SDS) for all materials stored in government space on the inside of the door to the area.

- M. Contractor shall provide employees with a uniform in a distinctive color and bearing the Contractor's name or logo. The uniform must be kept reasonably clean and neat in appearance and be worn at all times by personnel when performing work of this contract.
- N. Contractor Personnel shall not exhibit inappropriate personal appearance or hygiene while performing work of this contract. Such shall be brought to the attention of the Contractor by the COR or Site Inspector and requested the personnel be removed from the place of performance at that time, not returning till appropriately and reasonably presentable.
- O. Contractor shall require its employees to comply with the instructions pertaining to conduct and building regulations issued by the COR or Site Inspector.
- P. Contractor personnel shall perform work in a safe manner. Unsafe work habits shall be addressed by the COR or Site Inspector to the Contractor to have corrective measures implemented. Should the unsafe work habits persist, the Contractor will be notified by the COR and required to remove the Contractor personnel.
- Q. Contractor personnel shall have the Government issued PIV card in possession at all while performing work of this contract.
- R. Contractor personnel shall be respectful, courteous and mindful of the office environment and personnel. These individuals are subject to the rules and regulation of the NPS at all times while performing work of this contract.
- S. Contractor shall prohibit their personnel from disturbing papers on desks, opening desk drawers or cabinets, or using telephone or office equipment provided for official government use.
- T. Contractor personnel that recover any item of value (camera, binoculars, wallets, purses, glasses/ sunglasses, luggage or any other items) which may have been lost or stolen must report this to the COR, Site Inspector, or Site Supervisor (in accordance with Section 2.17 of Title 36 CFR) immediately with description of item, when and where recovered.
- U. Misconduct or inappropriate behavior of any kind.
 - 1. Contractor personnel shall not exhibit inappropriate or offensive behavior at any time while performing work of this contract or while on federal property. This could be deemed immediate grounds for dismissal of the personnel.
 - 2. Contractor shall ensure personnel are not using illegal drugs, drinking alcoholic beverages, exhibiting intoxicated behavior while on federal property or while performing work of this contract. This shall be immediate grounds for removal of the Contractor's personnel.
 - 3. Disrespect to either park employees or visitors during performance of the contract.
 - 4. Personal conditions. Using illegal drugs, drinking alcoholic beverages, intoxicated behavior or unsafe work habits.
 - 5. Under circumstances set out above, and at the request of the CO, the Contractor shall be responsible for immediate removal of contractor personnel from this contract. When it is necessary to remove personnel, the contractor shall immediately provide a replacement to

carry out the services to be performed under this contract. Contractor is responsible for obtaining all Government issued property, including keys and PIV card, from the removed personnel, providing it to the COR, Site Inspector, or Site Supervisor within three (3) business days.

XX. CONTRACTOR QUALIFICATIONS

- A. The Contractor shall ensure that all personnel assigned to perform work under this contract possess the necessary knowledge, skills, abilities, and resources to execute tasks in accordance with best industry standards and practices. Each employee must have a minimum of five (5) years of verifiable experience in the specific maintenance tasks to which they are assigned.
- B. All personnel must hold any required certifications or licenses applicable to their assigned duties (e.g., HVAC, electrical, plumbing, pest control, etc.), and the Contractor shall provide proof of certification upon contract award and upon request throughout the contract period.
- C. Furthermore, the Contractor affirms familiarity with the scope, nature, and complexity of the work required by the National Park Service (NPS), and acknowledges an understanding of the operational conditions and environments under which services will be performed.

XXI. DELIVERABLES

- A. The following shall be submitted to the CO for approval prior to the commencement of work to be performed under this contract:
- B. Certificate of Insurance - Within 10 calendar days after the contract is awarded.
- C. Business Licensing/Permits – Within 10 calendar days after the contract is awarded and must be valid and designated for work to be performed in the State of Arizona.
- D. Safety Plan – A written Safety Plan (see SECTION 11: SAFETY) must be submitted to the Government within 10 calendar days after the contract is awarded and will be incorporated into the resultant contract.
- E. Quality Control Plan - The Contractor shall institute a complete Quality Control Plan (QCP) to ensure the requirements of this contract are provided as specified. The goal of the QCP should be to identify and correct any problems that may arise before they are identified by the CO or his/her representative. A written Quality Control Plan must be submitted to the Government at least 10 days prior to commencement of work and will be incorporated into the resultant contract.
- F. Daily Site Report: The Contractor shall provide a reporting template within 10 calendar days after the contract is awarded that will record the quantities of work performed, location of where the work was performed, and any observed maintenance or safety issues such as leaks, broken fixtures, malfunctioning lights, and other deficiencies.
- G. An inspection system, covering all services required, utilizing a comprehensive checklist to monitor contract performance.

- H. A system for identifying and correcting deficiencies and/or a pattern of deficiencies in the quality or quantity of services provided. This shall include providing consistency and precision among contractor employees as to provide the same standard of services as required in this Scope of Work, and what industry standards are required to be met and how that can be achieved on a consistent basis.
- I. A file system to maintain record/documentation of inspections conducted and corrective actions taken. Documentation of inspections conducted, deficiencies identified, and corrective actions taken must be kept current and made available to the COR and Site Inspector upon request.
- J. SDS Sheets and Cleaning Product Information – The Contractor must submit a list of material and products to be used in the performance of work under the terms of this contract. The list of materials shall include the name of the manufacturer, the brand name, and the intended purpose or use of each of the materials listed. A Safety Data Sheet (SDS) for each product and material listed must also be provided.
- K. Schedule – The Contractor must submit a schedule for services listed as “weekly”, and “daily” work with dates to be performed. The Contractor must inform the Government of schedule changes at least one week in advance.
- L. Personnel – Within 10 calendar days after the contract is awarded. Personnel cannot be changed in the first 90-days of the contract award date and shall be done with written approval of the Contracting Officer (CO). This list must be kept current with the names of all Contractors’ employees performing services under this contract and their work schedules.
- M. Log of Supplies/Materials/Equipment – A log of supplies, materials, and equipment shall be provided at the end of each calendar month during the period of performance along with a copy of the month’s invoices.
- N. Payroll Report – Shall be provided at the conclusion of each calendar month during the period of performance along with a copy of each month’s invoices and the log of supplies/materials/equipment.

XXII. SUBCONTRACTING

The Government reserves the right to approve or disapprove any subcontractors selected. The Contractor shall obtain approval from the CO for all subcontractors prior to entering into any subcontracts. The Contractor's request for approval shall be in writing and include the specific work to be accomplished by the subcontractor.

XXIII. PRE-WORK CONFERENCE

A pre-work conference will be conducted between the NPS CO, COR, Site Inspector, and the Contractor prior to the beginning of the work. The Contractor shall designate in writing final names,

emails, and telephone numbers, to include a cellular phone number, of all Key Personnel. The Contractor or his/her supervisor shall be available at all times when the contract work is in progress to receive notices, reports or requests from the CO or the COR and Site Inspector. It is advised by NPS CO that the Contractor Supervisor and other key personnel attend the pre-work conference as key members of the Contractor's personnel team for this contract.

All assigned Contractor personnel to perform work of this contract that are in the process of or shall have the background check completed, shall be provided in a list at this pre-work conference that shall have the following:

- First Name
- Last Name
- Email address (must be valid to schedule, complete, and return any background check documents or other required information as requested by the PSO)

XXIV. GOVERNMENT POINT OF CONTACTS

NPS, NCRO shall designate a Contract Officer and an individual to serve as the CO's Representative who shall be the primary point of contact for day-to-day operations of the program.

Contract Officer:

Casey Winters
National Park Service
1100 Ohio Drive, SW
Washington, D.C. 20242
Casey_Winters@nps.gov
(202) 354-3980

Contracting Officer Representative:

Ramie Lynch
Visitor and Resource Protection
National Park Service
1849 C St. NW
Washington, DC 20240
ramie_lynch@nps.gov
(202) 271-5782

Site Supervisor:

Janet Kelleher
BABTP Program Manager
National Park Service
Horace-Albright Training Center
1 Albright Avenue
Grand Canyon, AZ 86023
Janet_Kelleher@nps.gov
(202) 744-2282

Site Inspector

Luis Cabrera
Facilities Logistics Specialist
National Park Service
Horace-Albright Training Center
1 Albright Avenue
Grand Canyon, AZ 86023
luis_cabrera@nps.gov
(928) 456-6929

XXV. PROCEDURE FOR PAYMENT

Payment will be made monthly for work completed that meets or exceeds the quality specifications accepted by the Government covering the previous month's service for service activities in that given month. Upon acceptance, the Government will pay monthly the appropriate amount times the occurrence of the services. For example: February has 20 daily services, 5 weekly services to be performed for the

month. The cost for these services would be added together for the amount due for fully acceptable service, given the number of days stated in the contract for that month. Payment will be determined on the services and frequencies, less any deductions, for any non-conforming or unacceptable performance.

Deductions – Anytime the performance of services falls below acceptable quality, a deduction for services that cannot be re-performed or are performed late will be made based on the level of service provided for that month. If the performance quality is 95% for a particular deliverable item and that item is missed or the acceptable performance level drops below acceptable quality, the amount due for that pay item will be reduced to the appropriate level of acceptable performance for service provided for that month based on number of days in that month.

NPS shall pay the Contractor once a month, on a calendar basis, for services/product performed. The Contractor shall submit invoices on a monthly rate if for a service or after acceptance of the Government. Invoice for payments will need to be submitted to the NPS COR by email at Ramie_Lynch@nps.gov for approval of payments before being entered into Invoice Processing Platform (IPP). Once approval is received by the COR, the Contractor may submit payments in IPP for processing.

Invoices must have the following information:

- Date of Invoice
- Invoice Number
- Contractor Address
- Contractor Phone Number
- Billing POC (Contractor)
- Billing - Contact Phone Number (Contractor)
- Billing - Contact email (Contractor)
- Contract/Task Order Number
- Billing Period (Period of Performance)
- Date of Service(s) (Delivery must fall within the monthly periods)
- Acceptance performed
- Location(s) Service(s)/Delivery performed
- Description of Service(s)/Item(s) delivered/ performed
- Rate of Service(s)/Items

Hardcopies of an invoice may be mailed to the following if preferred. Please note if mailed, it may take longer for response from COR for payment approval to be processed in IPP:

National Park Service
Visitor and Resource Protection
COR: Ramie Lynch
1849 C St. NW

Washington, DC20240

All payment requests, once approved by the COR, must be submitted electronically through the U.S. Department of the Treasury's (<https://www.ipp.gov>) Invoice Processing Platform System (IPP). Invoices must be submitted on a monthly basis and clearly show where the work was performed. The Contractor shall upload a copy of the invoice as an attachment(s) through IPP.gov. The invoice will be rejected if a copy is not attached through IPP.gov.

Appendix A: Location Data

		LOCATION 1 (NPS)	LOCATION 2 (NPS)	LOCATION 3 (NPS)	LOCATION 4 (NPS)	LOCATION 5 (NPS)	LOCATION 6 (NPS)
<i>All quantities below are estimated for courtesy review</i>	Unit of Measure / Quantity	Horace- Albright Training Center Kowski Hall	Student Residence - Building 1-A	Student Residence - Building 1-B	Student Residence - Building 1-C	Student Residence - Building 1-D	Student Residence - Building 1-E
UTILITY SYSTEMS DATA:							
HVAC							
Air Cooled Chiller for IT Room (Maintenance Area Parking) - LPG Butane,	Each	1					
AC Fan Coil Unit - Water cooled, Propane	Each	32					
Air Handling Unit - Single Zone, 2,600CFM, Hydronic, 40 Ton, 2,600CFM, 0.8in WTR, 2HP, 1,050RPM	Each	2					
Air Handling Unit - Single Zone, 1,200CFM, 17 Ton, 2,600CFM, 1.1in WTR, 1HP, 1,400RPM	Each	1					

Fan (Exhaust) - Ceiling Mount, Axial, 650CFM, 120V, 0.2HP, 1,050RPM, 1-phase	Each	1					
Heat Exchanger - Steel	Each		15	15	15	15	15
AC Unit - Water Cooled, Propane	Each	9					
Boiler (Utility Room) - 405 MBH, LPG, 500 LBS/HR, 160 PSI	Each	32					
AC - Air Cooled Chiller, Propane	Each	33					
Fan Coil Unit - 8.0 Ton, 120V	Each	1					

Air Handling Unit (Classroom 2) - 2,600 CFM, 40 Ton, Hydronic, located in Mechanical Room	Each	1					
Air Handling Unit (Offices) - 1,200 CFM, 40 Ton, Hydronic, located in Mechanical Room	Each	1					
Air Handling Unit (Classroom 1) - 2,600 CFM, 17 Ton, Hydronic, located in Mechanical Room	Each	1					
Exhaust Fan (Axial) - 650 CFM, 120V, Roof Mount	Each	1					
Exhaust Fan, Axial, 80 CFM, 0.06HP, 1200RPM, 1-phase	Each		13	13	15	10	15
Unit Heater - Glycol, Radiant Heat, Wall Mounted	Each	3	42	42	42	35	42
Electrical							
Electrical Panel - 225AMP, 120V	Each	4					

Electrical Panel - 100AMP, 120V	Each	1	3	3	3	1	2
Electrical Panel - 125AMP	Each		15	15	13	8	15
Electrical Panel - 400AMP	Each		1	1		8	1
Generator - 150KM, 277/480V, Diesel	Each	1					
Plumbing							
Boiler (Boiler Room) - Cast Iron, LPG, 818 MPH, 1,010 lbs/hr, 42GPM, 160PSI	Each	1					
Boiler - Cast Iron, LPG, 405 MPH, 500 lbs/hr, 160PSI	Each		1	1	1	1	1
Hot Water Heater - Fan Coiled Unit, 8.0 Ton, 535CFM, 0.29HP, 1,050RPM, 1-phase	Each	1					
Hot Water Heater (Utility Room) - LPG, 100gal	Each		1	1	1	1	1
Pump - Progressive Cavity, Cast Iron, LG, 0.5HP, 31 GPM, 7.38PSI, In-line Mount	Each		2	2	3	2	2
Pump - Progressive Cavity, Cast Bronze, LG, 0.8 HP, In-line Mount	Each		1	1	1	1	1

Pump - Progressive Cavity, Cast Iron, LG, 0.75 HP, 31GPM, Horizontal Mount	Each		1	1		1	1
Backflow Prevention Valve - Double Check, 4.0 IN	Each	1					
Backflow Prevention - Brass, 0.75in	Each		1	1	1	1	1
Backflow Prevention - Brass, 2.0in	Each		1	1	1	1	1
Backflow Prevention - Brass, 1.5in, Fire-line	Each		1	1	1	1	1
Backflow Prevention - Brass, 3.0in	Each		1	1	1	1	1
Fixtures / Appliances							
Drinking Fountain - Standard plus Filing Station	Each	2					
Roof							
Roof - Metal	SF	11,000					

Roof - Single Membrane	SF		4,760	4,760	4,760	4,760	4,760
Gutters and Down leaders	EA	6	9	9	9	5	9
Fire Suppression							
Sprinkler System (Wet Pipe) -	Each	1	1	1	1	1	1
Smoke/Heat Detectors - Ceiling Mount	Each	50	14	15	16	9	16
Portable Fire Extinguishers - Dry Chemical, 250SF	Each	35	5	5	5	6	5
Fire Pull Alarm	Each	7	6	6	6	11	6
Fire Signal - Horn/Strobe, Wall Mount	Each	21	3	3	3	10	3
Fixed Fire Suppression System (Kitchen Hood) - Protex II, Wet Chemical	Each					1	
Electric Door Mechanisms							
Accessible Door System - Exterior	Each	1					

Electric Door Locks - 9 volt,	Each	39	31	31	31	25	31
Electronic Door Lock - 110 Volt w/ battery backup, Wall Mounted	Each	1					

			LOCATION 5 (NPS)
<i>All quantities below are estimated for courtesy review</i>			Horace-Albright Training Center Grounds 1 Albright Avenue Grand Canyon, AZ 86023
LOCATION DATA:	Material	Unit of Measure - Length (FT)	
Official Working Hours:			7:00am to 6:30pm
Gross Area:			10 AC
Sidewalk Pavement Type	Concrete	LF	3,290
Trail Pavement Type	Granite	LF	2,535
Deck	Concrete	SF	2,407
Deck	Recycled Plastic	SF	2,400
Maintained Landscape	Hardscape	SF	18,000
Traffic Pavement	Asphalt	SF	68,085
Service Requirement:			7 days per week

<i>All quantities below are for courtesy review</i>							Center Community Lounge and Fitness Center (Karraker Lounge) Building 1-D	Student Residence - Building 1-E 1 86023
	Unit of Measure / Quantity	Kowski Hall	Student Residence - Building 1-A	Student Residence - Building 1-B	Student Residence - Building 1-C	Student Residence - Building 1-D		
LOCATION DATA:								
Official Working Hours:		7:00am to 6:00pm	7:00am to 6:00pm	7:00am to 6:00pm	7:00am to 6:00pm	7:00am to 6:00pm	7:00am to 6:00pm	7:00am to 6:00pm
Number of Stories:	Each	1	2	2	2	2	1	2
Gross Area	SF	12,617	4,958	4,958	4,958	2,479	2,479	4,958
Flooring - Carpet	SF	9,932	3,226	3,773	3,800	1,273	618	3,800
Flooring - Ceramic Tile	SF	550			-	-	-	-
Flooring - Vinyl	SF	135	756	976	1,012	323	1,440	1,012
Flooring - Concrete	SF	2,000	598	598	598	-	421	146
Drinking Fountains:	Each	2	-		-	-	1	-
Sinks	Each	7	26	30	30	12	3	30
Doors	Each	40	45	47	47	12	10	47
Windows	Each	97	61	61	61	30	31	61
Tables	Each	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Chairs	Each	N/A	N/A	N/A	N/A	N/A	N/A	N/A
Lights	Each	240	62	64	64	19	45	64
Toilets/Urinal	Each	9	13	15	15	9	2	15
Bath/Shower	Each	-	13	15	15	10	-	15
Mirror	Each	5	24	30	30	19	2	30
Mattress	Each	-	16	20	21	11	-	20

Solicitation Clauses and Provisions

(i) FAR 52.212-1 Instructions to Offerors – Commercial Products and Commercial Services (SEP 2023) (Provision)

Addenda to provision FAR 52.212-1:

The word quote or quoter is substituted in provision FAR 52.212-1 for the word offer or offeror.

1.3 Addenda to Provision FAR 52.212-1 paragraph (b) Submission of Offers:

1) Offerors must have an active entity registration in the System for Award Management in order to submit an offer.

<https://www.sam.gov/SAM/>

a) Price Proposal – Include the following: 1) the completed Bid Schedule provided as an attachment of this solicitation, and 2) acknowledgement of any amendments to this solicitation by following the instructions that accompany the amendment(s).

b) Representations and Certifications – Fill in the check boxes for provisions [FAR 52.204-26](#), [FAR 52.204-24](#)(if applicable) and [FAR 52.212-3](#), found in paragraph(x) of this solicitation and include a copy with your offer.

2) Submit offer by email to casey_winters@nps.gov so that it is delivered into this inbox by the due date and time. Emails should contain Price Proposal, Signed SF18, Representations and Certifications, and completed provisions, FAR 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (NOV 2021) (Provision), as well as, FAR 52.204-26 Covered Telecommunications Equipment or Services-Representation (OCT 2020) (Provision) in Microsoft Word, Excel, or Adobe PDF format. Be aware that large attachments may increase the time required to deliver an email. It is the offerors responsibility to confirm receipt of the offer.

3) Address questions about this solicitation to, casey_winters@nps.gov

1.4 Addenda to Provision FAR 52.212-1 paragraph (f) Late submissions:

Replace (f)(2)(i) with the following:

Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. Delete FAR 52.212-1 (f)(2)(i) paragraphs A, B, & C.

(End of provision)

(ii) FAR 52.212-2 Evaluation – Commercial Products and Commercial Services (NOV 2021) (Provision)

(a) Basis for Award

Award will be made on a Lowest Price Technically Acceptable (LPTA) basis in accordance with the evaluation factors set forth in this RFQ.

(b) The quotes shall be evaluated, starting with the lowest priced offer, against the following evaluation factors. If said offeror is found to be technically acceptable no further evaluations of offers shall be performed

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

(iii) **Representations and Certifications (complete highlighted items in this section and return with your offer)**

VENDOR NAME:

VENDOR UEI:

SOLICITATION PROVISIONS AND CONTRACT CLAUSES

2 **PART C – COMMERCIAL CONTRACT CLAUSES**

2.1

2.2 As indicated in Block 27a of the SF18, FAR Clause 52.212-4 Contract Terms and Conditions – Commercial Items (Nov 2023) applies to this solicitation and is incorporated by reference.

Compliance with EO 14148 / 14208

2.3 System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

2.4

2.5 Per CAAC Letter 2025-02, Supplement 1 deviation for the Department of the Interior to implement Executive Orders 14148 and 14208.

Letter can be retrieved at <https://www.acquisition.gov/caac/2025-02-supplement-1>

2.6

2.6.1 Additional Clauses Incorporated by Reference

52.225-2 CLAUSES INCORPORATED BY REFERENCE (Oct 2022)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

<http://www.acquisition.gov>

CLAUSES INCORPORATED BY REFERENCE		
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	FEB 2016
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services.	NOV 2023
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications	JUN 2020
52.232-23	Assignment of Claims	MAY 2014
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013

52.227-14	Rights in Data – General	MAY 2014
52.245-1	Government Property	SEP 2021
52.245-9	Use and Charges	APR 2012

Additional Clauses Incorporated by Full Text

52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
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(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24 and Federal Information Processing Standards Publication (FIPS PUB) Number 201.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

- (1) When no longer needed for contract performance.
- (2) Upon completion of the Contractor employee's employment.
- (3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of clause)

52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021
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(a) Definitions . As used in this clause—

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment ; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country .

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment , parts and components, materials , software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment , and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment , system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract , or extending or renewing a contract , with an entity that uses any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services , regardless of whether that use is in performance of work under a Federal contract .

(c) Exceptions. This clause does not prohibit contractors from providing—

(1) A service that connects to the facilities of a third-party, such as backhaul , roaming , or interconnection arrangements ; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the

Contracting Officer , unless elsewhere in this contract are established procedures for reporting the information ; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil>. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer (s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil>.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause

(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services , and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services .

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

52.212-5	Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services. (Deviation FEB 2025)	(Jan 2025)
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52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services.

As prescribed in [12.301](#)(b)(4), insert the following clause:

Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Oct 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).

☐ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☒ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).

☒ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).

☐ (6) [Reserved].

☐ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

- X__ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115–390](#), title II).
- X__ (11)
- (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115–390](#), title II).
- __ (ii) Alternate I (Dec 2023) of [52.204-30](#).
- X__ (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).
- X__ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- __ (14) [Reserved].
- __ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- __ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- __ (17) [Reserved]
- __ (18)
- (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- __ (ii) Alternate I (Mar 2020) of [52.219-6](#).
- __ (19)
- (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- __ (ii) Alternate I (Mar 2020) of [52.219-7](#).
- __ (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).
- __ (21)
- (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).
- __ (ii) Alternate I (Nov 2016) of [52.219-9](#).
- __ (iii) Alternate II (Nov 2016) of [52.219-9](#).
- __ (iv) Alternate III (Jun 2020) of [52.219-9](#).
- __ (v) Alternate IV (Jan 2025) of [52.219-9](#).
- __ (22)
- (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- __ (ii) Alternate I (Mar 2020) of [52.219-13](#).
- __ (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- __ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- __ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- __ (26)
- (i) [52.219-28](#), Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

- ___ (ii) Alternate I (Mar 2020) of [52.219-28](#).
- ___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644](#)(r)).
- ___ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637](#)(a)(17)).
- X___ (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O. 11755).
- X___ (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).
- X___ (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).
- X___ (34)
- (i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).
- ___ (ii) Alternate I (Feb 1999) of [52.222-26](#).
- X___ (35)
- (i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-35](#).
- X___ (36)
- (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).
- ___ (ii) Alternate I (Jul 2014) of [52.222-36](#).
- ___ (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).
- ___ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- X___ (39)
- (i) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- ___ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)
- ___ (41)
- (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

- ☐ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).
- ☐ (47)
- ☐ (i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).
- ☐ (ii) Alternate I (Jan 2017) of [52.224-3](#).
- X ☐ (48)
- ☐ (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (Oct 2022) of [52.225-1](#).
- X ☐ (49)
- ☐ (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note, [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (Jan 2025) of [52.225-3](#).
- ☐ (iv) Alternate III (Feb 2024) of [52.225-3](#).
- ☐ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- ☐ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).
- X ☐ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- X ☐ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).
- ☐ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).
- ☐ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- ☐ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- X ☐ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- X ☐ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

- ___ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ___ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).
- X___ (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- ___ (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ___ (65)
- (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).
- ___ (ii) Alternate I (Apr 2003) of [52.247-64](#).
- ___ (iii) Alternate II (Nov 2021) of [52.247-64](#).
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- [Contracting Officer check as appropriate.]
- X_ (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- X_ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and 41 U.S.C. chapter 67).
- ___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- X_ (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- X_ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).
- (d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.
- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR

subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of [52.204-30](#).

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O. 11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

- (xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).
- (xvi)
- (A) [52.222-50](#), Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).
- (xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii)
- (A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).
- (B) Alternate I (Jan 2017) of [52.224-3](#).
- (xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).
- (xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).
- (xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.
- (End of clause)
- Alternate I* (Feb 2000). As prescribed in [12.301](#) (b)(4)(i), delete paragraph (d) from the basic clause, redesignate paragraph (e) as paragraph (d), and revise the reference to "paragraphs (a), (b), (c), or (d) of this clause" in the redesignated paragraph (d) to read "paragraphs (a), (b), and (c) of this clause".
- (End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP)	FEB 2021
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Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice [Contracting Officer to edit and include the documentation required under this contract]:

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

DOI AAAP-0028	ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INTERNET PAYMENT PLATFORM (IPP)	APR 2013
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Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice

Copy of Invoice

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

52.203-99	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS (DEVIATION 2015-02)	Feb 2015
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(a) The contractor shall not require employees or contractors seeking to report fraud, waste, or abuse to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or contractors from lawfully reporting such fraud, waste, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(b) The contractor shall notify employees that the prohibition and restrictions of any internal confidentiality agreements covered by this clause are no longer in effect.

(c) The prohibition in paragraph (a) of this clause does not contravene requirements applicable to Standard Form 312, Form 4414, or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Resolution Appropriations Act, 2015 (Pub. L. 113-235), use of funds appropriated (or otherwise made available) under that or any other Act may be prohibited, if the Government determines that the contractor is not in compliance with the provisions of this clause.

(2) The Government may seek any available remedies in the event the contractor fails to comply with the provisions of this clause.

(End of clause)

PART D – CONTRACT DOCUMENTS, EXHIBITS AND ATTACHMENTS

2.7

2.8 [List of Contract Attachments](#)

- **Attachment 1:** Scope of Work
- **Attachment 2:** Wage Determination

3 PART E – SOLICITATION PROVISIONS

3.1

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (Oct 2020)

(a) Definitions. As used in this provision, “covered telecommunications equipment or services” has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) Representation. The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

3.2 As indicated in Block 27a of the SF18, FAR Clause 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS (MAR 2020) applies to this solicitation and is incorporated by reference.

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (Feb 1998)

This contract incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov>

PROVISIONS INCORPORATED BY REFERENCE		
52.203-18	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements - Representation	JAN 2017
52.204-7	System for Award Management	NOV 2024
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations - Representation	NOV 2015
52.212-1	Instructions to Offerors-Commercial Items	SEP 2023
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran – Representation and Certification	JUN 2020

3.2.1

3.2.2

3.2.3 Additional Provisions Incorporated in Full Text

52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
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The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract , subcontract , or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services —Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has

represented that it "does not use covered telecommunications equipment or services , or any equipment , system, or service that uses covered telecommunications equipment or services " in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions . As used in this provision—

Backhaul , covered telecommunications equipment or services , critical technology , interconnection arrangements , reasonable inquiry , roaming , and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment .

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul , roaming , or interconnection arrangements ; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment , system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services , regardless of whether that use is in performance of work under a Federal contract . Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul , roaming , or interconnection arrangements ; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services ".

(d) Representation. The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract , subcontract or other contractual instrument resulting from this solicitation . The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry , for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services , or use any equipment , system, or service that uses covered telecommunications equipment or services . The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer :

(i) For covered equipment —

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier , CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer :

(i) For covered equipment —

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier , CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

1452.233-2 Service of Protest Department of the Interior (JUL 1996) (Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from NPS, WASO – WCP Contracting, Attn: Casey Winters, Contracting Officer, P.O. Box 25287, MS WCP, Denver, CO 80225. A courtesy copy shall be sent via electronic commerce (e-mail) to casey_winters@nps.gov.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of Provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

1415.252-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION – DEPARTMENT OF THE INTERIOR (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its Subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

3.3 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS – COMMERCIAL ITEMS (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395](#)(b), applied in accordance with the rules and definitions of [6 U.S.C. 395](#)(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act ([50 U.S.C. 1702\(b\)\(3\)](#)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at [38 U.S.C. 101\(2\)](#)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR [52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR [4.1201](#)), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#).
[*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern*. [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program*. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *Small disadvantaged business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in [13 CFR 124.1001](#).

(6) *Women-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program*. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

|

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at [52.225-3](#) is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

|

|

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]

(1) *Listed end products.*

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) *The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.*

☐ (ii) *The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.*

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) *Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4](#)(c)(1)*. The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) *Certain services as described in FAR [22.1003-4](#)(d)(1)*. The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\)](#) and 3325(d), reporting requirements of [26 U.S.C. 6041](#), 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐Sole proprietorship;

☐Partnership;

☐Corporate entity (not tax-exempt);

☐Corporate entity (tax-exempt);

☐Government entity (Federal, State, or local);

☐Foreign government;

☐International organization per 26 CFR1.6049-4;

☐Other _____.

(5) *Common parent.*

☐Offeror is not owned or controlled by a common parent;

☐Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation*. The Offeror represents that–

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror–

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if–

(i) This solicitation includes a trade agreements certification (e.g., [52.212-3\(g\)](#) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM ([12.301](#)(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that–

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)